

attorney's fees to be determined. The statute provides that "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her post offer costs and shall pay the defendant's costs from the time of the offer. (CCP § 998(c) [emphasis added].)

Defendant contends that "costs" for this purpose include attorney's fees, relying on *Scott Co. of Cal. v. Blount Inc.* (1999) 20 Cal.4th 1103, 1113. In *Scott*, however, the suit involved a contract that contained an attorney's fees provision. As the Supreme Court pointed out, "Under Code of Civil Procedure sections 1032 and 1033.5, costs include attorney fees if authorized by contract." (*Id.*, at 1106; See CCP § 1033.5(a)(10) (A)-(C) [recoverable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law."]) Thus, the court found that "The costs specified by section 1033.5 include attorney fees 'when authorized by ...(A) Contract.'" (§ 1033.5, subd. (a)(10)(A).)

Defendant offers no other authority supporting its claim that recoverable costs include attorney's fees in this case. It does not claim that the fees were incurred to enforce a contract with an attorney's fee clause under Civil Code section 1717. If the action were covered by section 1717, defendant presumably would simply move for all its attorney's fees pursuant to the contract, since it is the prevailing party, unlike the defendant in *Scott*.

The motion is denied.

19. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS**
FILED BY: KALAMAS, ALICIA
TENTATIVE RULING:

On the Court's own motion, this matter is **continued to January 29, 2026, 9:00 a.m.**

20. 9:00 AM CASE NUMBER: MSC22-00438
CASE NAME: GODFREY VS. DENARD
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET 2**
FILED BY: DENARD, DESIREE
TENTATIVE RULING:

Defendant moves to compel responses without objection to Requests for Admission, set two, specifically numbers 19-22. The underlying case involves plaintiff's claim that defendant distributed on the internet "revenge porn," containing her image. The requests are as follows:

No. 19: Admit that you knew that Jerry Law posted the video in a chat.

No. 20: Admit that you asked Jerry Law to apologize for sharing the video in a chat.

No. 21: Admit that Jerry Law used the stage name "Lucky Dollaz" before you applied for the

registration of the “Lucky Dollaz” trademark with the U.S. Patent and Trademark Office.

No. 22: Admit that after Jerry Law refused to apologize to you for sharing the video, you applied for registration of the trademark “Lucky Dollaz” with U.S. Patent and Trademark Office.

Plaintiff objected to each request as vague, irrelevant, and invading her privacy. Although she has supplemented her response twice, each supplement simply contained a longer explanation for the basis of the objection. No substantive response was ever provided. Defense counsel adequately met and conferred on the matter.

“[A] party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (C.C.P. § 2017.010.) Thus, the fact that the information may not itself be admissible in evidence is not a valid objection.

Defendant explains the relevance as follows: Jerry Law is the defendant in a similar case brought by Ms. Godfrey. Ms. Godfrey claims that Law received the video from Ms. Denard, defendant in this case, and then distributed it to third parties. Ms. Godfrey then “punished” Law by registering his stage name (“Lucky Dollaz”) and registered it with the U.S. Patent and Trademark Office, effectively “taking” it from him. Defendant argues that this relates to the video sharing, and that Ms. Godfrey’s reaction to it is relevant.

Plaintiff responds that this case is about defendant Denard sharing the video, not about Jerry Law, the defendant in a separate case. She maintains that her reaction is “understandable.”

Plaintiff’s reaction to the video sharing, whether it be justifiable trauma or vindictiveness, is relevant to the subject matter of the action, and could lead to admissible evidence. Since Mr. Law obtained the video from Ms. Denard, the effects of distribution of the video by Mr. Law could be relevant to the alleged liability of Ms. Denard. In addition, they could show knowledge of the video distribution, which is relevant to defendant’s statute of limitations defense. Notably, the requests are written in such a way as to ask for admission only of the actual actions by Ms. Godfrey, not to admit to any particular mental state. Thus, they do not involve any sensitive private information.

Ms. Godfrey contends that the motion is untimely. She served the initial responses on July 22, 2025. After meeting and conferring, plaintiff served supplemental responses on July 24 and July 29, 2025. The motion was filed on August 5, 2025. Whether measured from the first response date or the third date, the motion was filed within 45 days of the response. (C.C.P. § 2033.290(c).) It was timely.

The motion is granted. Plaintiff is to serve responses to Requests for Admission, set two, numbers 19-22, within 14 days after notice of entry of this order.

Defendant seeks sanctions of \$1,000 in attorney’s fees, which is less than the amount that would be obtained based on the lodestar fee of 3 hours times a \$400 hourly rate.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2033.290(d).) Plaintiff did not act with substantial justification, and no other circumstances make imposition unjust. Indeed, in the meet and confer process, plaintiff indicated her willingness to be sanctioned. **Sanctions of \$1,000 are awarded, to be paid within 14 days of notice of entry of this order.**

21. 9:00 AM CASE NUMBER: MSN21-0558
CASE NAME: CITY OF VALLEJO, A MUNICIPAL CORPORATION VS. STATE OF CALIFORNIA STATE DEPARTMENT OF WATER RESOURCES, A CALIFORNIA STATE AGENCY
***HEARING ON MOTION IN RE: TO STRIKE OR TAX PETITIONER'S COSTS**
FILED BY: THE CALIFORNIA DEPARTMENT OF WATER RESOURCES, A CALIFORNIA AGENCY
TENTATIVE RULING:

Respondents and Real Party in Interest move to strike or Tax Petitioner’s costs, in the amount of \$6,727.69. No party has opposed the motion.

In the underlying case, a group of petitioners sought relief under CEQA, raising a variety of alleged inadequacies in the Environmental Impact Report for the project. They succeeded only on one issue, i.e., consideration of impact of the project on shoreline fishing within the project area. That particular issue was raised by two of the many petitioners, Reclamation District No. 2060 and Reclamation District No. 2068. The environmental documentation was revised, and found satisfactory by the Court (over some opposition) in a writ return proceeding.

Under Code of Civil Procedure section 1032(a)(4), “If any party recovers other than monetary relief... the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides.”

Judged by the overall scale of the project and the number of inadequacies alleged in the Environmental Impact Report, the Court does not conclude that petitioners were the prevailing party in the action. Accordingly, the **motion to strike costs is granted.**

22. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
HEARING IN RE: JOINDER IN DEF'S MOTION FOR TERMINATING AND MONETARY SANCTIONS AGAINST PLAINTIFF
FILED BY: DEMAINE, BRIAN KEITH
TENTATIVE RULING:

The Court will not repeat the events that have led to this point, which are well-chronicled in the Court’s two prior orders in the case.

Plaintiff appeared at her deposition, without counsel. She declined to answer a number of questions,